

CV-26-006115 WELCH, SAVANNAH vs EAST BAY HC RESOURCE – Defendant East Bay HC Resource’s Motion to Compel Arbitration of Plaintiff’s Individual Paga Claim; to Stay Plaintiff’s Representative Paga Claim; and to Stay All Discovery Pending the Court’s Ruling on this Motion, or in the Alternative Pending Completion of the Ordered Arbitration – GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Without directly addressing the issue of interstate commerce, the court finds, to the extent that the parties agreed in their Arbitration Agreement that the Federal Arbitration Act would govern their disputes, that the parties' Arbitration Agreement is governed by Federal Arbitration Act. (*Tuufuli v. W. Coast Dental Admin. Servs., LLC*, (2026)117 Cal. App. 5th 1048). The Court also finds that a valid arbitration agreement exists between the parties covering the instant dispute. (Code of Civil Procedure, § 1281.2; *Gamboa v. NorthEast Community. Clinic*, (2021) 72 Cal. App. 5th 158). The Court also finds that Plaintiff voluntarily signed the arbitration agreement and that same was not a contract of adhesion. Furthermore, Plaintiff expressly appended her initials to the portion of the arbitration agreement that stated that she agreed to same voluntarily. (Defendant's Exhibit B at page 4). The undisputed record also establishes that Plaintiff was able to save any information she recorded in the portal, exit and return to continue inputting any additional information preventing any finding of oppressions. The court additionally finds that the arbitration agreement is a separate, standalone four-page document, prominently identified as a voluntary mutual arbitration agreement, with clearly defined subtopics which clearly stated that arbitration was voluntary and not a condition of employment. This negates a finding of oppression. Regarding Plaintiff's claims of a lack of understanding of legal jargon and statutory references, a party is deemed to have read and to understand the contents of a document he appends his signature to. (*Baker v. Italian Maple Holdings, LLC*, (2017)13 Cal. App. 5th 1152; *Desert Outdoor Advertising v. Superior Court* (2011) 196 Cal.App.4th 866). Moreover, an employer is not required to explain the terms of an arbitration agreement to an employee though a lack of explanation may contribute to a finding of procedural unconscionability. Any state law requiring that would contravene the FAA. (*OTO, L.L.C. v. Kho*, (2019) 8 Cal.5th 111). The Court therefore finds that the agreement does not demonstrate any procedural unconscionability. (Cal. Civ. Code § 1670.5(a). *Ramirez v. Charter Commc'ns, Inc.*, (2024) 16 Cal. 5th 478; *Lim v. TForce Logistics, LLC*, (2021) 8 F.4th 992 (6 Cal. Jur. 3d Arbitration and Award § 47; *OTO, L.L.C. v. Kho*, (2019) 8 Cal. 5th 111, 447; *Lange v. Monster Energy Co.* (2020) 46 Cal.App.5th 436; (*Ajamian v. CantorCO2e, L.P.*, (2012) 203 Cal. App. 4th 771) Substantive unconscionability typically is found in the employment context when an arbitration agreement is one-sided in favor of the employer without sufficient justification (*Cook v. Univ. of S. California*, (2024), 102 Cal. App. 5th 312, 321 reh'g denied (June 13, 2024). Plaintiff makes general claims of substantive unconscionability but does not make a specific reference to any specific provision of the arbitration agreement that is alleged to be substantively unconscionable. The Court finds no substantive unconscionability regarding said arbitration agreement. To the extent that the arbitration agreement provides Plaintiff may not bring any class, collective or representative action, this does not constitute an unlawful waiver of Plaintiff's representative PAGA claims. (*Viking River Cruises, Inc. v. Moriana*, (2022)142 S. Ct. 1906, reh'g denied, 143 S. Ct. 6; *Adolph v. Uber Techs., Inc.*, (2023) 14 Cal. 5th 1104). The Court also finds that this provision does not contribute to a finding of substantive unconscionability. The Court also finds that said arbitration agreement exhibits a modicum of bilaterality and meets the Armendariz requirements (*Armendariz v. Foundation Health Psychcare Services, Inc.*) (2000) 24 Cal. 4th 83). Accordingly, the Court finds that a valid enforceable arbitration agreement exists between the parties that covers the instant dispute. Defendant's motion is hereby granted. Plaintiff's individual claims including his Private Attorney General Action (PAGA) claims are hereby ordered to arbitration. Plaintiff's representative Private Attorney General Action (PAGA) action is hereby stayed pending the conclusion of said arbitration. (*Adolph v Uber Techs Inc.* (2023) 14 Cal.5th 1104, Code of Civil Procedure, § 1281.4) For the avoidance of doubt, any discovery in this matter is also stayed pending the conclusion of arbitration. Defendant's Request for Judicial Notice is hereby granted. (Evidence Code section 452(d)). Plaintiff shall submit Proposed Order that conforms with this ruling within five court days.

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